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Tentative Ruling

Re: ***Arambula-Garcia v. Servellon et al.***
Superior Court Case No. 23CECG04857

Hearing Date: May 12, 2026 (Dept. 501)

Motion: Petition to Compromise Claim

Tentative Ruling:

To deny, without prejudice. In the event that argument is requested, both petitioner Blanca Marisela Arambula-Garcia and plaintiff Francisco Arambula Velazquez are excused from appearing.

Explanation:

Petitioner Blanca Marisela Arambula-Garcia ("petitioner") seeks an order compromising the claim of plaintiff Francisco Arambula Velazquez.

Upon review of the Petition, it appears that petitioner seeks to establish a court-supervised special needs trust. (Attachment 10c, Attachment 18(b)(4).) The purpose of the trust appears to be to enable future public assistance. This court in a civil proceeding will not retain jurisdiction of such trust supervision. Accordingly, petitioner must show that she has first filed with the Probate Division to establish the supervised trust to comply with California Rules of Court, rule 7.903. The Probate Division provides the requisite ongoing court supervision of the trust. Once there is an approved probate petition, petitioner may refile for approval to fund the trusts through an order of compromise of claim in this civil matter.

For the above reasons, the Petition is denied, but without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT on 5/11/2026.
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Wheeler v. Spane et al.***
Superior Court Case No. 25CECG02378

Hearing Date: May 12, 2026 (Dept. 501)

Motions: by Plaintiffs to Compel Further Discovery Responses From
Defendant Jessica Felmus

by Plaintiffs to Compel Further Discovery Responses From
Defendants Mike and Holly MacNeill

Tentative Ruling:

To deny the motion to compel further responses from Jessica Felmus as untimely.
To deny all requests for sanctions in connection with this motion.

Explanation:

In one motion, plaintiffs move to compel further responses from Felmus to Form Interrogatories, Set One, Request for Admission, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One.

A notice of motion to compel must be filed and served within 45 days after verified responses, or any verified supplemental responses, were served, unless the parties agree in writing to extend the time. (Code Civ. Proc., § 2030.300, subd. (c)⁴.) Failure to file the motion within the 45-day time limit waives the right to *compel a further response*. (Code Civ. Proc., § 2030.300, subd. (c); see *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.)

Felmus served responses to the discovery on 9/5/2025. Defendant Jeffrey Kertson filed an anti-SLAPP motion on 9/23/2025, resulting in a discovery stay from 9/23/2025⁵ to 11/19/2025. Eighteen days passed from Felmus' service of discovery responses to the stay on 9/23. That left 29 days after the discovery stay lifted (adding two days to the 45-day limit due to electronic service of the responses) to file a motion, or a deadline of 12/18/2025. Plaintiffs did not file their pretrial discovery conference request until 12/26/2025, and the motion filing deadline had already passed at that point. Plaintiffs filed the instant motion to compel on 1/9/2026.

In their reply brief, plaintiffs argue that the motion is timely because (1) there was an agreement with Felmus to extend time to file the motion, and (2) Felmus' service of supplemental responses re-set the 45 day time limit as to all discovery issues raised in the motion.

⁴ The deadline is the same for other types of written discovery.

⁵ It is unclear why plaintiffs claim that the start of the discovery stay was 9/25/2025.

Plaintiffs rely on provisions in Code of Civil Procedure sections 2030.300, subdivision (c) and 2031.310, subdivision (c), which require a propounding party to file and serve a motion to compel for responses to interrogatories and requests for production, respectively, "within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing[.]" (Code Civ. Proc., §§ 2030.300, 24 subd. (c), 2031.310, subd. (c).)

Plaintiffs impliedly contend that because on 12/17/2025 Felmus served supplemental responses to interrogatories, that resets the motion to compel deadline as to all sets of discovery raised in the motion. (See Reply 1:24-25.) The court does not agree.

First, plaintiffs neglect to mention that Felmus only supplemented responses to Form Interrogatory No. 17.1 and Special Interrogatory No. 15. Plaintiffs' motion to compel does not challenge or address the two interrogatories that were supplemented. The motion is solely directed at the responses served by Felmus on 9/5/2025. The court reads the language "or any supplemental verified response" to apply only to the specific discovery supplemented. Second, there was no supplement to the Request for Admission or Request for Production of Documents. There is no showing that supplementation of other discovery requests extends the motion deadline as to discovery responses that were not supplemented.

As for the assertion that there was an extension of time to file the motion, Felmus explicitly states that there was no such agreement. (See Felmus Decl., ¶ 15.) Plaintiffs' counsel states under penalty of perjury, "On December 4, 2025, Plaintiffs' counsel and Felmus met and conferred, whereby **the parties agreed** that by December 17, 2025, Felmus would provide supplemental responses to Special Interrogatory No. 15, and Form Interrogatory No. 17.1, **and that the time to file a Motion to Compel would be extended by two (2) weeks.**" (Christofferson Decl., ¶ 9, emphasis added.) The referenced agreement is attached as Exhibit E to the declaration. Exhibit E is a 12/5/25 email from attorney Rachel Alstrom to Felmus stating,

Good morning Ms. Felmus,

I apologize for not mentioning this last night, but it is our understanding that, given our willingness to provide you more time to produce supplemental responses, our timeframe to file a Motion to Compel is extended as well. So, since your supplemental responses are due December 17, 2025, we have two (2) weeks past that production date-December 31, 2025- to file a Motion to Compel, should one be necessary.

Please indicate whether you agree to the Motion to Compel deadline extension, and reach out if you have any questions.

Thank you,

Rachel Alstrom, Esq.

(Christofferson Decl., Exh. E, emphasis added.)

Exhibit E includes no response from Felmus to the email. Counsel's email can be read as no more than a request for an extension of time. Clearly there was no written agreement extending the deadline for plaintiffs to file their motion. A unilateral wishful

understanding is not an agreement in writing. Plaintiffs' counsel's representation that there was an agreement appears to be an outright misrepresentation of fact.

Because there was no written agreement extending the time to file a motion to compel as to any discovery request at issue, and the motion only concerns responses that were not supplemented, the motion directed at Felmus is denied as untimely.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT **on** 5/11/2026.
(Judge's initials) (Date)